

where the sette householde was, to Charter howse, vpon horsebacke, by the marshes to [Stamford] Hille betwene Totnam Highe Cross & Newington, & so soone as he entred into Middlesexe, Martin of the middle temple made a learned speeche¹ in the behalfe of the sheriffes of london & Middlesexe, whoe there receaued him; & at the sayde Hille the Lor. Maior & his bretheren, the Aldermen, in scarlette, & 400 Citisens, in vellette Coates, & Chaynes, all one horsebacke, mette wth him, & Croke, the Recorder, made a speache, & the Duke of Linneux² bare the sworde before him. Vpon Mondaye & Tewsedaye Followinge, he wente secreatelye throughe manye streates & partes of london & to Whitehalle & Westminster & S^t James', &c.; & at Charter Howse he made 115 knightes: & vpon Wednsedaye Followinge he wente pryuatelye to Whitehalle, & there tooke barge betweene twelue & one a'clocke, & wente to the Tower, & as he wafted vpon the water, a gallaunte pealle of ordynance was discharged: there he stayde vnto Fridaye Followinge, & in the morninge before he departed he made more knightes, & 4 barons; S^r Phillipe Sidnie, Baron of Penseherste; S^r Edward Wootton, Baron of [Maherley]³; S^r Rob. Cecill, Baron of Essington; S^r W^m Knowles, Baron of Graies; & then he wente by water to Greenewige, & all the householde, where, vpon Sondaye, the 22th [sic] of Maye, his ma^{tie} delyuered a learned, relligious, wyse & Comfortable speache to the Lo. Maior & his bretheren, to the greate admiration & reioycinge of them all, & then knighted the Lo. Maior, S^r Rob. Lee, the Recorder, S^r John Croke, and the Attornie-generall, S^r Ed. Coke: it is generallye reported that moste of the knightes that are made doe purchase the same, & geue to the Scotchmen, some one 100^{li}, some 200^{li}, some 300^{li}, & that his ma^{tie} dothe not dislyke of it, but tollerate it rather then to buye or selle Juditiall places, w^{ch} is a most Commendable

Comes to the
Charter-
house

'A copie of
this speache
followethe
in this
booke.'

He is met by
the citizens
of London

[p. 144]

He makes
more
knightes

To the
Tower

He makes
more
knightes and
four barons

To Green-
wich

Addresses
the Lord
Mayor,
May 23
More
knightes

Purchase of
knighthood

¹ It was evidently the intention of Hawarde to copy this speech, and the various proclamations, etc., already referred to, into his book, but the intention was never carried out. See next page. A copy of Martin's speech is preserved among

the State Papers, Domestic, James I., vol. i. No. 71.

² Ludovio Stewart, 2nd Duke of Lennox. 'Lord Clanricarde, an Irishe lorde,' struck out.

³ Blank in MS.

thinge in his ma^{tie}: & it is allso sayde that the scoteche & englishe heraldes haue twentye nobles of euerye knighte that ys made to recorde his name, & that his ma^{tie} dothe expecte that euerye knighte he makethe showlde keepe three greate horse furnyshed for seruyce.

Knights to
keep three
horses for
service

[p. 145]

Petitions to
the King

'There was a petition preferred to his ma^{tie}, called the poore's petition, another called the petition of the Catholiques,¹ the Copies of them bothe are entred in this booke: His Ma^{ties} Cheifeste studye & Care shoulde seeme to be for the publike good, as maye appeare by his seuerall proclamacions in printe, for the borderers,² for the vnitinge of the Realmes,³ & especialye againste protections, monopolies, saltpeter men, purueyors, lawyers, etc.⁴ his charge in the starre chamber, as maye appeare before in this booke, fol. 125 [ante, p. 161]. Vpon Wednesdaye & Thursdaye, the 25 & 26 dayes of Maye, his ma^{tie} wente by water to Putnie, & so by Coache to Noanesuche, & to Hampton Cowrte: & then back to Greenewige.'

May 25 and
26

[The next fifteen pages are left blank, probably for the various proclamations, speeches, letters, etc. above referred to.]

[p. 161]

1604

October 29

In Camera Stellata, coram Consilio ibidem, le prochein iour puis le terme, 29 Octobr. 1604, Ter^{no} Michaelis, Jacobi Regis 2^o.⁵

POUNDE'S
case

Petition
against
judges

M^r Pounce,⁶ a great and ancient recusant, was prosecuted *ore tenus* by Coke, the King's Attorney, for a petition delivered by him to the King, against Baron Sauuelle and Sir Edward Phillips, the King's Serjeant, Judges of the Northern Circuit, for executing one Baillie,

¹ 'The Papists verrey lately put up a suplication to the King for a tolleracion; his aunswre was, Yf there were 40,000 of them in armes should present such a petition, himsele would rather dye in the feild than condescend to be false to God. Yet seemed he would not use extremity yf they continued in duty like subjects.' *Manningham's Diary*, Camden Soc., p. 170.

² 'A Proclamation charging all actors or partners in the incursion

on the Borders, to resort to the Commissioners at a day limited.' *Book of Proclamations*, p. 17.

³ 'A Proclamation for the vniting of England and Scotland.' *Ibid.* p. 18.

⁴ 'A Proclamation inhibiting the vse and execution of any Charter or Grant made by the late Queene Elizabeth, of any kinde of Monopolies, &c.' *Ibid.* p. 12.

⁵ No names given.

⁶ See Appendix XIV.

a miller, for rescuing a priest, and [also] for executing one Rauson¹ for 'receiving & relieving' a priest, and [also] for persecuting by imprisonment one Atkinson, an ancient priest in the time of Queen Marie. 'He termeth Rauson "a martir," & Atkinson, "good father Atkinson": He delivred a petition to the Kinge, beginninge wth verses in englishe, & then wth Articles, that Baron Sauuell shoulde delivuer in his Charge that whosoever hearde a Masse it was Felonie; w^{ch} was improbable & senceles [even] for a meane man that neuer studyed any lawe, for it is by the lawe but a pecuniarie punishmente. He scandalized Justice, the Judges whoe are sworne to do Justice & represente the kinge & haue his charge, & are to gyue to him an accounte, & for there ill Cariage are to receaue a heauye iudgemente, as [in] the Case of Justice Thorpe²; he sclaundered likewise the Justices of peace & the Jurors: & yet knewe none of all this of his owne knowledge, but by hearesaye & the reporte of others. & beinge examyned, vpon his allegaunce, whoe those others were, he refused to aunswere; he Called them Hamans & Susanna's Judges; he taxed the lawe of Crueltye³; he sclaundered the time paste [past] in the late Queene's Raigne, in w^{ch} [p. 182] time M^r Attornie did shewe that at the beginninge of her Raigne there were no recusauntes, but all wente to Church vntill the 9th yeare of her Raigne that Pope Pius Quintus sente his bull, & absolved them from there obedyence, & after sente there preistes & seditious bookes: he sclaundered the time presente wth Crueltye, terminge themselues Gibeonites, very fitlye, as M^r Attorneie applyed, in there olde shooes, Coates, mustie bottles, & breade, & suche like trashe: & he threatened the time to Come wth reuenge of theise men's bloode, vniustlye & Cruellye martyred, as he sayde: whereas in verie truthe there was not anie one in all Queene Elizabeth's time that suffered deathe for

Slander of
Justices of
the Peace
and Jurors

Pope Pius
Quintus;
his Bull

¹ Probably one of the Rawsons of Shipley near Bradford, Yorkshire, a noted family of recusants. For notes of several members of the family, see Foley's *Records of the*

English Province of the Society of Jesus, vol. iii. p. 108.

² See *ante*, p. 136.

³ *I.e.* charged the law with cruelty.

1604
Oct. 29

Recusants to
pay 20*l.* a
month or go
to prison

religion or Conscience, but for treason to the person of the prince or state, or wthdrawinge or seducinge the people from there obedience; & after Pope Pius' absolution by bull, & therevpon a generall relapse from Church, a pecuniarie punishment of 20^{li} by monethe & imprisonmente yf they had not [wherewith] to paie;¹ as this man Pounce was manie yeares imprisoned, & now aged, & it seemed now decayed in his senses, for he shewed manie apperaunces of good partes, w^{ch} either yeares or troubles had now greatlye defaced in him; so that he talked muche idle talke, & impertinente, & to no purpose; yet Confessinge verie discretelye he was to rashe & had offended in ouer forward blinde zealle, but yet wth extrauagante idle wordes he spoyle all againe, & was helde shorte by y^e Courte; he was of ouer bolde a spirite, & full of matter, & verie plentiful in vttering the same. M^r Attornie tolde him the papistes woulde gyue him litle thankes for that daie's service, for it seemed he looked to be canonized for it; but saithe the Attornie, "god be thanked, the gospell this daye is muche more aduanced, & error & poperie abased, & the glorie of god extolled."

[p. 168]
Sentence

' So for theise offences he was Fyned 1000^{li},² imprisonmente duringe y^e kinge's pleasure in y^e tower, & to stande one the pillorie here at Westminster, & in Lancashire, & to haue his eares nailed, but not cutte of; yet if he woulde produce those that informed him he shoulde not haue his eares naylled, albeit those y^e beganne the sentence woulde haue had his eares Cutte of, but the sentence of y^e Courte was otherwyse: in the begynninge of his replie to his Charge, w^{ch}, as the Attornie sayde, did Caste itselfe into a tryangle, firste in three offenders, Baillie, Rauson & Atkinson; for Baillie, he was no papiste, but a protestante, & he Comminge wth 80 more to rescue a notorious preiste sendinge to the prison, he onelye was taken, & iustelye Condemned for treason, & yet executed but as a Felon³: Rauson, for receyuinge & harboringe a preiste whome had sayde he

Baillie's
case

Rauson's
case.

¹ The statute was 23 Eliz. cap. 1.

² See Appendix VII.

³ That is, he was hanged, not beheaded.

Could raise 4000 stronge, & woulde by suche a daye
 surprise suche a Castle, & for Concealinge him & Con-
 ueyghinge him awaye, w^{ch} was likewyse treason, & iustly
 Condemned for y^e same, yet executed as a Felon. For
 Atkinson, the olde preiste, he published at the Assises that
 he had authoritie vpon a man's penitencye to forgyue anye
 sinne, albeit it were the deposinge or killinge y^e kinge, &
 subscribed to this in wrytinge, for the w^{ch} he was onelye
 Committed, & not to Yorke Goale, by reason of y^e plauge
 then there, but to Hull: & by suche like examples manye
 hundredes began to relapse & fall to error, & y^e late lawe
 of 1^o Jacob. did require an exacte excusation of the lawe
 againste recusancye: so likewise was there a tryangle of
 men scandalized, Judges, Justices of peace, & Jurors. &
 he scandalized the time paste [past], the time presente, &
 threatened the time to Come. He demaunded a Com-
 mission to proue y^e same, w^{ch} was againste lawe, order
 & all Course of presidente [precedent], & so [it was]
 vtterlye denyed him: then he sayde there were some of
 note & good place that woulde iustifie the article of Charge
 gyuen by Baron Sauuelle that it was felonie to heare a
 masse, & named S^r Thom. Heskette,¹ Attornie of y^e
 wardes, & M^r Tilselie, & desyred to haue them produced
 to his face. They were sente for, & aunsweare retorned
 that M^r Tilselie was gone out of towne, & that the Attornie
 of the wardes woulde Come. Then he [Pounde] sayde he
 was not assured whether he [Heskette] were presente &
 did heare it or noe, so then it appeared plainelye he had
 done vnadvisedlye in all, & was rashe wthoute anie good
 grounde, w^{ch} was muche condemned in him by all y^e hearers
 wth a plaudite & hissinge; & then [Pounde] grewe delected
 & dismayed, & to wander in idle & impertinente talke, so
 that whereas before he was accounted before by y^e wyser
 sorte of Catholiques an aduysed, discreete, learned &
 iudiciall arche man & pillar amongste them, they now
 sayde he was distracted, he doated by reason of his age, or
 raued by reason of his troubles: god graunte all the

Atkinson's
case

1 James I.,
cap. 4,
against
recusancy
[p. 164]

¹ Hesketh.